

26VECV00284 26VECV00284

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-22

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Case Number: 26VECV00284 Hearing Date: July 22, 2026 Dept: T

26VECV00284 Nazari v Liberty Canyon

Ex parte to enter default: Denied. Plaintiff misreads CCP 430.41. That section allows one extension of time to respond to a pleading while attempting meet and confer. It does not say one time per case. Therefore, if attempting to meet and confer, and unable to do so, the defendant will get one continuance to respond to that pleading. Any additional time for that pleading requires court permission.

CCP 430.41(a) specifically requires a meet and confer on amended pleadings. Plaintiff failed to meet and confer with defense counsel in response to its attempt to meet and confer on the amended complaint until the due date for the response, and then refused to grant a one week extension to respond. Plaintiff cannot refuse to participate in meet and confer which is mandated on an amended pleading. Therefore, defendant's attempt to meet and confer on the amended pleading stands. Plaintiff should have engaged in the meet and confer attempted by defense. The date for the response to the amended complaint is 30 days beyond the date that the response was initially due. This is the first time that an extension under CCP 430.41 was obtained for the amended complaint.

NOTE: If plaintiff did not give a warning and a date certain to defense counsel to respond or be defaulted (giving a reasonable amount of time to comply) as required under civility rules and case law, a default would be set aside on that ground alone.

There are three motions to compel which are set for hearing on 8/28/2026. The parties are ordered to have a meet and confer by video conference no later than 8/14/2026 and prepare a joint statement on what issues need to be resolved in a succinct manner to be filed no later than 5 calendar days before 8/28/2026. Plaintiff's counsel to begin the first draft of the joint statement.